

NOTES
2.3.2022 COW Meeting to Discuss SC Rules
4:00 to 6:00PM via ZOOM

4:05 ROLL: Jenny Graham, Sharon Hays, Kathy Kreatz, Melanie McLaughlin, Paul Ruseau, Breanna Lungo-Koehn: Present
Mea Mustone will be late.

Mayor Lungo-Koehn: Re: number two, we didn't caucus to elect the chair and vice chair this year. It was an agenda item in our regular meeting.

Paul Ruseau: Agree it should only be every two years.

Melanie McLaughlin: I want to know the difference between "rules" and "policies." We are supposed to have a handbook that lists the policies. There is something in the "policies" about caucus.

Are rules superseding the policy? I sent a link to the policies so we can search on them as needed.

Atty. Howard Greenspan : On that point, you have an online policy manual at the MASC. A lot of these rules tonight are consistent with the online manual. There are a couple that aren't. For example, number 9: SC meetings will be held at 6:00 pm. Policy says 7:00 pm. There are a few you have to make clear that this version is to be what you are going to use.

Melanie McLaughlin: Procedurally, there is a way to change policy. I think that we have to place it on the agenda to present the change. That is why I am backing up: what are rules? Policies?

Kathy Kreatz: I was going to bring up no. 9. Last year PVK and I put forth a resolution to change the meetings at 6:30.

Jenny Graham: Rules are things that govern this body (SC). Policies are how the superintendent should run the district. Frankly, we have never had a rules document. First thing we need to do is talk about these rules and if we agree this is the right set of rules, someone has to put items on agenda to be fixed/removed.

Paul Ruseau: Motion to amend rule 9 to strike 6PM and make it 6:30PM.

Kathy Kreatz: Second

Melanie McLaughlin: Point of information: I appreciate Jenny Graham's explanation. I see it the same way. There are some issues in the rules document that affect our policy. Is there a fundamental way of changing rules. When is the rule changing the policy manual?

Jenny Graham: I would suggest we apply that to specific rules/policies and not speak about it in the hypothetical. No one has cleaned up the rules in 20 or 30 years.

Mayor Lungo-Koehn: Motion to change #9 to 6:30.

Jenny Graham, Sharon Hays, Kathy Kreatez, Melanie McLaughlin (abstain), Mea Mustone (absent), Paul Ruseau, Mayor Lungo-Koehn: motion passes 5 yes, 1 abstain, 1 absent

Paul Ruseau: I would like to add after June pursuant to Policy BE-meetings.

Jenny Graham: Second

Roll: Jenny Graham, SH, Kathy Kreatez, Melanie McLaughlin (abstain), Mea (absent), Paul Ruseau, Mayor Lungo-Koehn; motion

Atty. Howard Greenspan: Remote technology needs to be consistent with requirements of open meeting law.

Paul Ruseau: Motion to add "as allowed by law" to number 11.

MEA MUSTONE: Arrived.

Kathy Kreatez: I am not ready to vote on this. I am not in favor of meetings in August. I would like to make an amendment to have an email update from the Superintendent in August instead of a meeting.

"The superintendent will send out a brief broadcast email communication at the end of each week in August"

Mayor Lungo-Koehn: two motions on the floor to amend the language and also the communication

Jenny: I am in favor of an August meeting. It could be remote.

Melanie McLaughlin: Zoom would be fine.

Mayor Lungo-Koehn: Zoom has not been extended that long as of right now.

Paul Ruseau: I got asked a lot of questions about school opening last August and there was no place for a presentation of the opening plan. I feel it was crazy that we didn't do one this last August. I felt that there was not enough information. I wrote this particular rule not with the intent of having SC members miss vacation time. The rule was written predicated on use of remote technology. If the legislature doesn't pass it, I would return to this rule.

Howard Greenspan: I wanted to go back to Jenny and Melanie McLaughlin said in the beginning. You have a policy BE which has meetings until June and doesn't include July and August. You will need to handle these conflicts.

Melanie McLaughlin: Point of information: out of concern for changing policy, we have to figure out how to remove the policy BE appropriately.

Howard Greenspan: I don't have the policy in front of me on how to change policies. Adoption of these rules will require us to amend the other rules accordingly.

Jenny Graham: Even if we approve this tonight, then this would still have to go to the floor for regular meeting.

Paul Ruseau: We agreed how to proceed. This will take 12 hours if we have to decide on the process.

Mayor Lungo-Koehn: We have two conflicting motions on the floor. Optional meetings during the summer with notices on anything pertinent from the superintendent throughout the summer.

Melanie McLaughlin: Policy BGE: policies will be adoptedon agenda of regular or special meeting.

Paul Ruseau: I don't see the policy myself. How long is it? Is it many pages long.

Melanie McLaughlin: Not long.....I will put it in the chat.

Paul Ruseau: We can't present a third option when there are two amendments on the floor.

Mayor Lungo-Koehn: We can discuss the middle ground. Is it amenable to Kathy Kreatz?

Kathy Kreatz: I am not in favor of a summer meeting and want to keep updates on the floor. At any point an emergency meeting can be called.

Mayor Lungo-Koehn: Amendment offered by Kathy Kreatz second by Melanie McLaughlin: strike summer meetings

Jenny Graham: No, Sharon Hays: No, Kathy Kreatz: Yes, Melanie McLaughlin: Yes, Mea Mustone: Yes, Paul Ruseau: No, Mayor Lungo-Koehn: Yes
4 on the affirmative/3 negative. Number 11 is amended.

Paul Ruseau: I am realizing there was no second as to as allowed by law?
I will withdraw it.

Mayor Lungo-Koehn: number 12 is much different than how we operate now. We don't meet on Wednesdays.

Kathy Kreatz; I agree. I wrote that down as well.

Supt. Marice Edouard-Vincent: If we were to have a Wednesday meeting, we would have to

post on a Friday. I would kindly request the following Monday. The Wednesday after a Monday complicates things. I prefer knowing that Mondays are reserved.

Kathy Kreatz: I motion to change it to the following Monday.

Jenny Graham: Second

Paul Ruseau: Use exact words.

Mayor Lungo-Koehn: strike will be moved to the following Wednesday sentence

Roll: Jenny Graham, SH, Kathy Kreatz, Melanie McLaughlin, Mea Mustone, Paul Ruseau, Mayor Lungo-Koehn: Yes: 7 affirmative. Motion for #12 approved.

Mayor Lungo-Koehn: number 14: what if the admin were sick and had to cancel?

"No meeting of the SC may be canceled or otherwise postponed unless four (4) members notify the Superintendent in writing prior to the meeting."

Paul Ruseau: It doesn't matter what the rules are, we have to agree on what they are. There was no written procedure for changing the January meeting. I should have known about it earlier.

If a meeting is posted, there is prob. Something in OML about it.

Kathy Kreatz: Number 17 connects with this. "In the event of emergency....."Should not these two rules be combined? What about snow?

Paul Ruseau: Rules have to be about one thing.

Kathy Kreatz: Motion to amend number 14 to say: Superintendent and/or Mayor can cancel meeting by emailing all members as soon as possible. 4:48PM

Melanie McLaughlin: Second

Roll: Jenny Graham; no, Kathy Kreatz, yes, Sharon Hays: yes, Melanie McLaughlin: yes, Mea Mustone: Yes, Paul Ruseau: no, Mayor Lungo-Koehn: yes
Motion passed

Paul Ruseau : I would like to ask Howard if the Supt. can cancel meetings?

Atty. Howard Greenspan: Canceling is up to the sc not the superintendent.

Jenny Graham: I agree with Howard. It is a slippery slope to allow a superintendent allow a SC not to meet.

Paul Ruseau: We already voted on this.

Melanie McLaughlin: I don't want to belabor the policy thing both BG and BGE are both items of discussion. I would like to clarify what we are doing. Procedurally, we will have to override BGE. Are we bringing these to a general meeting for passage.

Jenny Graham: Yes. that is how COWs work.

Melanie McLaughlin: on item 20: "a budget meeting will be held in the Spring of each year." Only one meeting?

Mayor Lungo-Koehn: that is not how I read it?

Melanie McLaughlin: can we call it a joint budget meeting?

Mayor Lungo-Koehn: Motion to amend "joint budget meeting" will be held in the spring of each year.

Dave Murphy: I am unclear what the meeting will be. I am curious as to what the SC and Council will look for in this meeting.

Kathy Kreatz: First we have to reach out to city council on whether they would like to have a meeting with us. I am confused with this rule as presented.

Paul Ruseau: The chair will schedule two joint meetings with the city council. They all refer to joint meetings; we don't need to keep adding "joint" to the language. These are rules. The superintendent can't say, "we don't want to present at City Council." The rule can be suspended by majority vote at any moment if we need to. This is an attempt to have a better relationship with city council.

Kathy Kreatz; Paul, would you be amenable to add "optional". I am confused about the general meeting in March on goals.

Mayor Lungo-Koehn: Maybe the middle ground would be one meeting.

Paul Ruseau: Motion to strike rule 20 entirely.

Kathy Kreatz: Second

Jenny Graham: No, Sharon Hays: no, Kathy Kreatz: yes, Melanie McLaughlin: no, Mea: no,

Paul Ruseau: yes, Mayor Lungo-Koehn: Yes

Motion fails $\frac{3}{4}$

Paul Ruseau: what is the other motion?

Mayor Lungo-Koehn: Adding the word "joint" to budget meeting.

Would the committee be amenable to scheduling one meeting per year? It has been difficult to get these meetings scheduled?

Kathy Kreatz: Yes. Motion to change the language to "The chair will schedule on one joint meeting with the city council" - get rid of the rest.

Paul Ruseau: Second

Roll: Jenny Graham, Sharon Hays, Kathy Kreatz, Melanie McLaughlin, Mea Mustone, Paul Ruseau, Mayor Lungo-Koehn: Yes 7/0

Kathy Kreatz: #21 and #22: Workshops and retreats "the meeting will not be broadcast or recorded" What is the difference between a workshop and a retreat?

Paul Ruseau: there are a number of types of meetings: hearing, regular meetings, and special meetings. Workshops and Retreats were other types of meetings. I would think that it would be appropriate to add "not recorded" into both.

Jenny Graham: Second. At the meeting we are talking about, we didn't have a quorum so it didn't need to be posted.

Atty. Howard Greenspan: Strike 21 and make it retreats or workshops in 22.

Kathy Kreatz: Motion to strike 21 and combine into 22.

Jenny Graham: Second

Paul Ruseau: Jenny Graham, Sharon Hays, Kathy Kreatz, Melanie McLaughlin, Mea Mustone, Paul Ruseau, Mayor Lungo-Koehn: Yes 7/0 Motion passes at 5:07.

Kathy Kreatz; number 23. Standing meetings? We haven't been doing this. I make a motion to strike the Vice Chair.

Melanie McLaughlin: Second.

Paul Ruseau: This language is here because the Mayor and the Supt. do meet outside of the SC meetings. This is to set an expectation of the School Committee. Could have it be the Vice Chair if the Mayor is not available to consult. Gives flexibility. I would not support that amendment.

Kathy Kreatz: I would like to hear from you.

Supt. Marice Edouard-Vincent: My preference would be to leave it how it is. If the Chair/Mayor isn't available but generally that has not happened. I prefer it to remain with the chair. She can delegate it to the Vice Chair.

Mayor Lungo-Koehn: We could write it in that the Chair could delegat the vice chair if necessary.

Kathy Kreatz: I amend my motion on the floor to say “chair of the sc and when unavailable will delegate to the Vice Chair. Such standing meetings.....include vice chair as needed.

Paul Ruseau: It feels a bit like that people are not being honest here. Are we going to discuss things that don’t matter endlessly?

Jenny Graham: No; Sharon Hays: no, Kathy Kreatz: yes, Melanie McLaughlin: yes, Mea: yes, Paul: no, Mayor Lungo-Koehn: Yes
Motion passed: 7/0

Melanie McLaughlin: This is not a reflection of who the vice chair is. I would like to focus on teamwork and collaborating with each other. This is a reflection of the process that has been working

Supt. Marice Edouard-Vincent: This has nothing to do with the Vice Chair. There is a lot of layering. There is a lot of micromanagement. Thinking about all the rules to run the district. A lot of this layering is not necessary. Some of this is really too much. I know I am not a voting member. This is a very stressful undertaking right now.

Mayor Lungo-Koehn: Moving on to 25 - 34 (5:19pm)
Mayor Lungo-Koehn: Moving on 35 to 41

Melanie McLaughlin: Amendment to 38: add to that “creating objectives and self evaluations.” Supposed to be how we are evaluating how we are working with each other. Maybe at the first or second objective, we set the objectives. At the end of the year, we evaluate our performance on the objectives.

Melanie McLaughlin: Motion to add objectives/evaluation of the School Committee to the Good of the Order.
“With the intent of continuous improvement as related to policy number.....and connected to school committee objectives and evaluations.”

Kathy Kreatz: Are we going to evaluate each other’s performance?

Melanie McLaughlin: This is an existing policy which has never been implemented. Actually it may be in Roberts Rules of Order. I rescind that motion.

Mayor Lungo-Koehn: Rules 42 to 48 (5:25PM)

Mayor Lungo-Koehn: Question on 43: Wednesday. It is always done on Thursday (48 hour rule) which allows additional resolutions to come in.

Kathy Kreatz: Motion to change wording.....no later than Thursday prior to the scheduled meeting. Copies.....at the Medford Public Library. I would like to strike that sentence.

Paul Ruseau: Point of information: Medford is not an online posting city?

Mayor Lungo-Koehn: we always post in the City Clerks office on the wall but also post online as quickly as we can. It is on the city calendar.

Supt. Marice Edouard-Vincent: We can go back to posting it on the bulletin board in the Admin hallway. We do need the time to get it done.

Mayor Lungo-Koehn: We should change it to 4:30 to be safe because the clerks office closes then.

Sharon Hays: Why wouldn't we want to post it in as many places as possible?

Mayor Lungo-Koehn: It would be great but is another step. We can ask the library can post the calendar for us.

Melanie McLaughlin: Going back to good of the order item, it is in our policy that we have operational policy (BA/BAA) where we are to set goals. Motion to include a rule to schedule a time to set the goals of the SC.

Paul Ruseau: I will need the new rule written out so I can type it in.

Melanie McLaughlin: I will draft it and put it in the chat.

Supt. Marice Edouard-Vincent: One clarifying question on rule 42: talks about numbering. Do we remove the other numbers from the agenda.

Paul: This is only for new items. This follows the city council rules for numbering. It only new items that are presented. This will give us ability to track where things are. We will probably have to discuss disposal of items.

Mayor Lungo-Koehn: Motion to change time to 4:30 and Wednesday and remove library.

Kathy Kreatz/seconded by Paul Ruseau

Jenny Graham: Yes, Sharon Hays: Yes, Kathy Kreatz: yes, Melanie McLaughlin: yes, Mea Mustone: yes, Paul Ruseau: yes, Mayor Lungo-Koehn: Yes

Kathy Kreatz: Question on 40. Agenda will include a listingmotions.
Motion to change the word to resolutions.

Jenny Graham: Second.

Roll: Jenny Graham: Yes, Sharon Hays: Yes, Kathy Kreatz: yes, Melanie McLaughlin: yes, Mea Mustone: yes, Paul Ruseau: yes, Mayor Lungo-Koehn: Yes 7/0 motion passes

Kathy Kreatz: 52. I am not in favor of the way it is written. "Members.....must register their intent prior to the meeting" I would like to remove that sentence. That is an inconvenience to the public.

Mayor Lungo-Koehn: I think you will want to remove the sentence after that.

Melanie McLaughlin: Second it.

Paul Ruseau: I got this rule from another community. You don't have to bring a birth certificate or anything. There is a button on a zoom like software where you hit a button, give your name and get in the queue. This is a meeting in a public, not a public meeting. It is not like city council. I thought it would be helpful to have people say they want to speak. The other part removes part of the list if the list is too long. Maybe the chair can limit the comments to two minutes based on the number of individuals wanting to speak.

Kathy Kreatz : Second it.

Sean Beagan (resident): On this rule, I had some concerns as a member of the public. I see a chipping away of public access. I understand that we are not going to read emails anymore. I thought that was a nice feature because some people don't like to speak in public. I am very much opposed to register ahead of a meeting. I feel people have the right to react to something that has been said during a meeting. An agenda item might need to be limited not the entire public comment. Public comment is not what is making meetings long.

Kathy Kreatz: Motion to strike the sentence.

Melanie McLaughlin: I don't want to limit access with a form. I feel like we could offer translation support to people who want to speak at meetings who need translation support.

Mayor Lungo-Koehn: Motion to strike the sentence:

Sharon Hays: I was concerned about that as someone who has attended meetings in the past.

Roll: Jenny Graham, Sharon Hays, Kathy Kreatz, Melanie McLaughlin, Mea Mustone, Paul Ruseau, Mayor Lungo-Koehn, YES; motion passes 7/0
Second sentence struck from entirety from number 52.

Melanie McLaughlin: 67; motion to rescind. There is no time limit but there is question if something has been partially executed that it cannot be rescinded.

Mayor Lungo-Koehn: I feel that Roberts Rules says you have to rescind by the next day at noon.

Paul Ruseau: Roberts Rules says you can do what you want with the rules.

Motion to table number 67:

Jenny Graham; SH: no. Kathy Kreatz: yes, Melanie McLaughlin: yes, Mea Mustone:yes, Mayor Lungo-Koehn: Yes

Motion to table number 67

Paul Ruseau: What do I do with a tabled rule?

Mayor Lungo-Koehn: Tabled until the next rules meeting. The meeting will end at 6pm.

Melanie McLaughlin: Rule 74: to suspend Parliamentary rules with a $\frac{2}{3}$ vote.

Paul Ruseau: This is common practice and it is only for one meeting. We do it already. We suspend the rules to move items out of order on the agenda. We wouldn't suspend all rules and create chaos. This is pretty standard stuff.

Kathy Kreatz : Rules gives us permission to move an item out of order.

Melanie McLaughlin: it could be any of the Roberts rules and that is what is concerning. I don't know why we have to have it in there with a $\frac{2}{3}$ vote. The meetings could be disorderly.

Jenny Graham: It is 6:02 so I would like to make a motion to adjourn.

Second; Melanie McLaughlin

Roll: Jenny Graham, Sharon Hays, Kathy Kreatz, Melanie McLaughlin, Mea Mustone, Paul Ruseau: no, Mayor Lungo-Koehn: Yes 6/1 motion passes. Meeting Adjourned at 6:03 PM

Melanie McLaughlin; thanks to Paul Ruseau for putting this document together.